COUNTY SURPLUS RECOVERY SERVICES AGREEMENT

[DRAFT] DRAFT - NOT FOR EXECUTION This instrument is the recut client agreement required by PAT-16. It is **not executed and not executable** until every condition in **Schedule F** is satisfied and the operator's mark is applied. It supersedes the escheat-era form only as a drafting artifact; it does not by itself change any loaded rule. **Nothing in this document is a send action.** No contact, filing, or outbound occurred in producing it. The operator's mark remains the only send.

PREAMBLE

This County Surplus Recovery Services Agreement (this "**Agreement**") is entered into as of [_____], 2026 (the "**Effective Date**") by and between:

PFR - the surplus-recovery suite operating under *Patriot Fund Recover*, with its address for notices set out in §13.4 (the "**Company**"); and

the individual identified in the signature block at the end of this Agreement (the "**Client**").

The Company and the Client are each a "**Party**" and together the "**Parties**."

Recitals.

A. The subject matter of this Agreement is **excess proceeds (surplus) held by counties** following tax sales and certain mortgage-foreclosure sales - money the county holds, subject to a statutory clock, in which a person may have an interest.

B. The form of client agreement the Company previously used was drafted for a **treasury-level unclaimed-property (escheat)** engagement - a state treasurer as counterparty, one general unclaimed-property regime, a single national fee, one filing concept, one disclosure script. That is the wrong deal for this subject matter, and this Agreement replaces it.

C. The Company's engagement is bounded by a **compliance spine** - a routing rule (one of three bags, or UNASSIGNED), hard stops that auto-close a file with zero outreach and zero spend, and a disclosure doctrine of per-county modules loaded verbatim - and by statute, and by the rule that no outbound communication occurs without the operator's mark on the specific item.

D. The Parties intend that the client engagement be narrow, per-file, and non-exclusive, that the Client's own right to file is preserved in every case, and that no fee is earned unless and until cleared funds are received from the county.

NOW THEREFORE, in consideration of the mutual covenants below, and in consideration of the Company's undertaking to investigate, prepare, and - where the law and the county or court permit - pursue the Client's surplus claim, the Parties agree as follows.

§1 - DEFINITIONS

1.1 "Assignment." An instrument by which the Client conveys or purports to convey the Client's right to surplus proceeds to the Company or to a third-party assignee, together with the disclosures and consideration required by the governing statute.

1.2 "Bag." The routing classification assigned to a File under §4, being exactly one of **Bag 1 (Assignee-Pay)**, **Bag 2 (Owner-Pay)**, or **Bag 3 (Court-Petition)**, or the status **UNASSIGNED** where no Bag has been set. A File may not be in more than one Bag, and a File's Bag may not be changed except by the Company acting under §4.6.

1.3 "Bag 1 (Assignee-Pay)." A File in which a third party files the claim, the check goes to the assignee, and a signed Assignment is required in the Packet. See §4.4 and Schedule C.

1.4 "Bag 2 (Owner-Pay)." A File in which the owner claims, the check goes to the owner, and any fee is invoiced only after the county pays the owner. Never an Assignment. See §4.4.

1.5 "Bag 3 (Court-Petition)." A File in which the Company prepares a counsel handoff and **does not file**. Counsel declining the matter closes the File. A Bag 3 File is never converted to Bag 1 or Bag 2. See §4.6 and §7.2.

1.6 "Claim." The Client's asserted right to surplus proceeds held by a County in respect of the Property.

1.7 "County." The county or county-equivalent whose records show the surplus, together with the county clerk or other county officer holding the funds.

1.8 "County Module." The disclosure module for a particular county and track, loaded verbatim. See §8 and Schedule D.

1.9 "Cleared Funds." Surplus proceeds actually received by the County (or by the assignee, where the County so pays) and made available for distribution, **net of all amounts the County is required or entitled to withhold, disburse to others, or withhold pending adjudication**, and net of the Township or other entity that must be paid first where applicable. **Distribution is lien-first, not owner-first** - in Florida, governmental-unit liens of record are paid before the balance, which then goes to the persons the statute designates. Filing a claim is not receipt of Cleared Funds.

1.10 "Filed" / "Filing." A document is **"filed"** when it has been delivered to and received by the office with which the governing statute requires it to be filed - the county clerk, the court, or other officer - **within the statutory filing window for that document.** A document transmitted, sent, mailed, prepared, or signed but not received by that office within the window is **not filed**, and a filing deadline is not met by mailing alone unless the governing statute so provides.

1.11 "Counsel." The Florida-licensed attorney or firm engaged by the Company, independent of the Company, whose sign-off is required for: the Assignment form for each track and county; each County Module; the fee characterization, consent, and any cooling-off or rescission language required by Florida law; and every Bag 3 handoff.

1.12 "File." The specific surplus matter for the specific Property, parcel, or tax account on which the Client is the Client.

1.13 "Packet." The set of documents the Company prepares for a File, which may include the Assignment, the claim form, the Client's ownership or identity documents, and supporting filings. A Packet is not a Claim, and a draft Packet is not a filing.

1.14 "Property." The real property on which the tax sale or foreclosure sale occurred that generated the surplus.

1.15 "Statutory Ceiling." The maximum compensation permitted for the File by the governing statute and the County's or Court's current instructions, as stated in Schedule A. A Statutory Ceiling is a ceiling and not a target.

1.16 "Track." The statutory and procedural regime governing the File, including without limitation the **Florida Tax-Deed Track** (governed by Fla. Stat. § 197.582), the **Florida Mortgage-Foreclosure Track** (governed by Fla. Stat. §§ 45.031 and 45.033), and each other jurisdiction-specific regime identified in Schedule A. The Track is fixed per File and **no statute, clock, cap, form, payee rule, or disclosure requirement crosses Tracks.** See §4.5.

1.17 "Trigger Date." The event from which the governing statutory period runs, as stated in Schedule B. Every deadline in this Agreement runs from the Trigger Date and never from the date a claim is filed, prepared, or delivered.

1.18 "Operator." The person with final authority over outbound activity for the Company, including the approval authority to mark any specific item for sending. The Operator is not a Party to this Agreement unless separately identified in the signature block.

1.19 "Operator's Mark." The Operator's affirmative mark on a specific item, recorded on that item, authorizing that item to be sent, filed, or lodged. **No outbound activity of any kind occurs without the Operator's Mark on the specific item.**

1.20 "Owner." The person who, under the Track governing the File, holds the entitlement to the surplus - in the Florida Tax-Deed Track, the legal titleholder of record; in the Florida Mortgage-Foreclosure Track, the owner of record as of the date of the lis pendens; and in any other jurisdiction, the person the governing statute designates as entitled to the

excess, including in Oklahoma the record owner as shown by the county records as of the date the county resale begins. The Owner is defined **for each File by its own statute** and not by general convention.

1.21 "Surplus" / "Excess Proceeds." The proceeds of a sale remaining after the sale costs and other amounts required by law are paid, which a County holds for the benefit of the persons having an interest in the Property.

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§2 - SCOPE OF SERVICES; THE COUNTY-SURPLUS PREMISE

2.1 Services. The Company will, on a per-File basis:

(a) investigate whether surplus exists in respect of the Property and whether the Client has an interest in it, including by reading the County's public records and current claim instructions;

(b) determine the File's Track, Trigger Date, and Bag under §4;

(c) determine whether the File is subject to any Hard Stop under §4.7 and close it if so;

(d) where authorized and permitted, prepare the Packet, including an Assignment where the File is in Bag 1 and the Assignment conditions in §6 are met;

(e) where the Operator's Mark has been given on the specific item, transmit the disclosure and lodge or file the Packet with the County or the Court; and

(f) invoice the Client in accordance with §5 upon receipt of Cleared Funds.

2.2 The county-surplus premise; no escheat. This Agreement concerns surplus held by a **County** under the rules of the State in which that County sits, under the Track applicable to the File. The prior escheat-era form is superseded in its entirety as to this subject matter. No provision of this Agreement, and no document, form, script, or representation used by the Company in performing it, shall be or is authorized to be constructed as any of the following, and the Company shall not make any such representation:

(a) that the counterparty is a State treasurer, a State department, or any unclaimed-property registry;

(b) that a single general unclaimed-property regime, a nationwide deadline, or a nationwide fee applies;

(c) that the Company represents, is affiliated with, is retained by, or was referred by any County, clerk, court, or government office;

(d) that surplus is paid to a single fund, that the Client is assured of recovery, or that the Company holds or controls the funds.

2.3 No custody; no entitlement. The Company does not hold the surplus, is not a party to the County's holding of it, acquires no lien or interest in it by this Agreement, and has no authority to direct disbursement. The County's obligation, if any, runs to the persons holding an interest in the Property.

2.4 No guarantee. The Company makes no representation or warranty that surplus exists, that the Claim is valid, that the County will pay, that any particular amount is recoverable, or that any deadline can be met. See §12.3.

2.5 Excluded matters. The Company does not accept and will not take up:

(a) any matter involving heirs, decedents' estates, probate, guardianship, or trust administration - such matters remain with Counsel or are closed (see §3.4, §4.7);

(b) any File in a jurisdiction **not accepted under Schedule A.1** - which includes **Texas** (outside the pilot), **Tennessee**, **Arizona**, **Colorado**, **Alabama**, and every jurisdiction not listed in Schedule A.1 at all. A jurisdiction marked **"No"** in Schedule A.1 is not accepted; a jurisdiction marked **"Conditional"** is accepted only once its condition precedent in Schedule F is satisfied (see §4.4(e) and Schedule A.1);

(c) any File for which the County's payee rule is unknown, which is UNASSIGNED under §4.3 and not accepted under this Agreement;

(d) any File in which the County Module is empty (see §8.1).

2.6 No legal advice. The Company is not a law firm, does not practice law, and does not give legal advice. See §9.3.

2.7 Per-File engagement. This Agreement is a per-File engagement. It creates no relationship for any other File, property, county, or person, and it creates no ongoing duty to search, monitor, or report.

2.8 Non-exclusive; Client may always proceed alone. Nothing in this Agreement prevents the Client from acting alone at any time, before or after engagement, and nothing in it makes the Client's own filing more difficult. See §9.1.

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§3 - CLIENT REPRESENTATIONS AND WARRANTIES

The Client makes each representation below **per File**, on the date the Client signs the applicable File Confirmation, and confirms that the representation remains true as of the date any Packet is lodged or filed. The Client may not waive a representation by instruction to the Company; if a representation is not true, the Company closes the File under §4.7.

3.1 Authority and capacity. The Client has full legal capacity to enter into this Agreement, is the owner of, or holds a valid interest in, the Property, and has not assigned, pledged, encumbered, or otherwise conveyed the Claim to any other person, except as this Agreement expressly permits and except as disclosed to the Company in writing. Any person signing on the Client's behalf holds the written authority to do so.

3.2 Identity and ownership as of the Trigger Date. The Client's identity is as stated in the signature block, and the Client's ownership or entitlement as of the **Trigger Date** is as stated in the File Confirmation. In the Florida Mortgage-Foreclosure Track the Client is the owner of record as of the date of the lis pendens; in the Florida Tax-Deed Track the Client is the legal titleholder of record; in Oklahoma the Client is the **record owner as shown by the county records as of the date the county resale begins.**

3.3 Prior filings. The Client has disclosed in the File Confirmation **whether the owner has already filed a claim alone.** Where the owner has filed alone, the File is in Bag 2 and the Company **closes it and does not recontact** the Client. The Client may confirm a prior filing in writing at any time, and the Company's duty to close is discharged by that confirmation.

3.4 No heirs, estates, probate, guardianship, or trust administration. The matter involves **no** deceased person's estate, no heirs' or beneficiaries' claims, no probate, no guardianship, no trust administration, and no administration of a protected person's property, and the Client is not a personal representative, guardian, trustee, or fiduciary acting in that capacity. Such matters **remain with Counsel or are closed** and are not accepted under this Agreement.

3.5 Track-specific ownership representations.

(a) **Florida Tax-Deed Track.** The Client is the **owner (titleholder)**. Any third-party interest the Client knows of is a **lien**, to be addressed through the statutory claim process and not by assignment to the Company.

(b) **Florida Mortgage-Foreclosure Track.** The Client is the owner of record as of the date of the lis pendens and understands that, after the clerk reports the surplus as unclaimed, **only the owner of record as of the date of the lis pendens may claim the surplus**, and that a non-owner who did not file a claim with the clerk will not be entitled to any remaining funds.

(c) **Oklahoma.** The Client understands the fund is held **for the record owner as shown by the county records as of the date the county resale begins**, and that the Client has provided the county surplus statement and notice on which that date rests.

3.6 Trigger evidence. The Client has provided, or will provide on request, the **notice of surplus, surplus statement, or equivalent record document** that establishes the Trigger Date, because **every deadline under the governing statute runs from the Trigger Date and never from the date a claim is filed, prepared, or delivered.** The Company is not obliged to work a File whose Trigger Date cannot be established.

3.7 Information supplied is accurate and complete. The information the Client supplied is accurate and complete as of the date supplied. The Client will promptly disclose any fact that would change it, including any prior filing, any assignment, any lien filed after the File Confirmation, and any change in ownership.

3.8 No other claimant known to the Client. Except as disclosed, the Client knows of no other person who has filed or intends to file a claim to the same surplus.

3.9 No guarantee of the Client's underlying entitlement. The Company does not warrant that the Client has an enforceable claim to the surplus, that the County holds surplus, or that the Claim will be allowed. Those are matters of law and of the County's and Court's records, and the Client's rights are the Client's own.

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§4 - BAG ASSIGNMENT, ROUTING, AND HARD STOPS

4.1 Every File lands in exactly one Bag before any spend. Each File is assigned to **exactly one Bag** before any skip-trace spend, contact, or packet work. The Bag is set from the governing statute and the County's current claim instructions - **not** from what is commercially convenient, and not from a general rule of thumb.

4.2 Decision order. Where more than one Bag could appear to apply, the Company resolves the File in this order and no other: **(i) court-petition first** - if the File is one the governing statute places in court, it is Bag 3 regardless of any other apparent route; **(ii) then assignee-pay** - if the File may be worked as an assignee-pay matter, it is Bag 1; **(iii) then owner-pay** - the owner claims, the check goes to the owner, and no assignment is drafted. **The reverse order is never used.** A file that looks like Bag 1 but is forced to Bag 3 is Bag 3.

4.3 UNASSIGNED - the payee rule is unknown. If the **payee rule is unknown** - that is, if the Company's reading of the County's current claim instructions or the governing statute does not establish who gets the check - the File is **UNASSIGNED**. An UNASSIGNED File **stops** before any skip-trace spend, contact, or packet work, and is not accepted under this Agreement. UNASSIGNED is **not** a Bag, is not a fee-bearing state, and may not be worked on the expectation that it will later be resolved.

4.4 Bag-specific authority and limits.

(a) **Bag 1 (Assignee-Pay).** A third party files the claim, the check goes to the assignee, and a **signed Assignment is required in the Packet**. Bag 1 is available **only** in the forced jurisdictions and only where the conditions are met: **Florida mortgage-foreclosure** and only where Fla. Stat. § 45.033 is satisfied; **Florida tax-deed** and only where that clerk pays an assignee; **Georgia** and only in counties that actually pay an assignee; **California** under Rev. & Tax. Code § 4675. Bag 1 is not available in any other jurisdiction, including Oklahoma, and **never in a Bag 2 File**. **Georgia and California are listed here as the jurisdictions in which Bag 1 can exist on the law; they are not worked until their clock rows are verified** - see §4.4(e). See §6 and Schedule C.

(b) **Bag 2 (Owner-Pay).** The owner claims, the check goes to the owner, and any fee is invoiced **only after the county pays the owner**. Bag 2 is **forced in Oklahoma**, and in any Florida, Georgia, or California county that pays only the owner or only a lienholder. **The Company never drafts an assignment in Bag 2.** If the owner files alone, the File closes and is not recontacted.

(c) **Bag 3 (Court-Petition).** A File in which the governing statute places the claim in court. The Company prepares a counsel handoff and **does not file**. Bag 3 is forced for Texas under Tex. Tax Code § 34.04, for Tennessee under Tenn. Code § 67-5-2702, and for any Georgia excess already at interpleader. Counsel declining the matter closes the File. A Bag 3 File is **never converted to Bag 1 or Bag 2.** See §7. **A Bag 3 designation does not admit the jurisdiction**: a jurisdiction marked "No" in Schedule A.1 is not accepted under any Bag, and a jurisdiction with an unverified clock row is not worked until verified (§4.4(d)-(e)).

(d) **Jurisdiction limit.** The Company accepts Files only in the jurisdictions whose **Accepted?** entry in **Schedule A.1** is **"Yes"** or **"Conditional."** A jurisdiction marked **"No"** in Schedule A.1 is not accepted under this Agreement - including **Texas** (outside the pilot), **Tennessee**, **Arizona**, **Colorado**, and **Alabama** - and no File in such a jurisdiction is accepted under any Bag, including Bag 3.

(e) **An unverified clock row admits no File, in any Bag.** A jurisdiction whose clock row is **UNVERIFIED** under **Schedule B.2** - currently **Texas, California, and Georgia** - is **not worked**: no File in that jurisdiction is opened, swept, clocked, or contacted, and the fact that a Bag has been identified for it changes nothing. **"Conditional"** in Schedule A.1 means the jurisdiction may be admitted **only after** the condition precedent in **Schedule F** is satisfied and its row is **verified against the primary statute and counsel-signed**. Until then it is **UNASSIGNED** under §4.3, and the Company's File record for it is closed to work. See Schedule F.6.

4.5 Track lock. The Track is fixed for each File when the File is opened. **Fla. Stat. § 197.582 (tax-deed) and Fla. Stat. §§ 45.031 and 45.033 (mortgage-foreclosure) are different statutes, clocks, forms, and fee rules, and no rule crosses Tracks.** A 120-day tax-deed deadline is never applied to a foreclosure File; a foreclosure claim bar is never applied to a tax-deed File; the 12 percent ceiling does not travel off a qualifying § 45.033 assignment; and the § 45.033 disclosure set is never used outside the foreclosure Track. If the Company's File records are inconsistent as to the Track, the File is **not clockable** until the Track is confirmed from the sale records.

4.6 Bag changes. A File's Bag may be changed **only by the Company**, on documented grounds, and only as follows: a Bag 1 or Bag 2 File may become UNASSIGNED or closed if the payee rule turns out to be unknown or the governing statute forecloses the route; an UNASSIGNED File may be assigned to a Bag once the payee rule is established; and a **Bag 3 File may never be converted to Bag 1 or Bag 2** - a Bag 3 File is closed when Counsel declines. Where a Bag change makes the File unacceptable under §2.5, the Company closes it under §11.2.

4.7 Hard stops - auto-close, zero outreach, zero spend. A File that meets any hard stop listed in **Schedule E** is **automatically closed** with **zero outreach and zero spend**. A hard stop is not a judgment call, is not a matter for the Client to consent to, and is not overridable by the Company or by any agent. The Client is told the File is closed and why, in the closure notice, and is not contacted further about it.

4.7.1 A Florida mortgage-foreclosure File that cannot qualify an assignment is not a Company File. Where the governing statute places the claim in court and the Company cannot qualify an assignment - that is, where the File cannot satisfy every condition in **§6.3** - there is **no third-party claim**: the owner of record may claim the surplus without a representative, and the File is **not a Company third-party lane**. Such a File **closes under §11.2** with zero outreach and zero spend, and the Client is told it was closed and why. **A File is never routed into Bag 1 on the expectation that the assignment conditions can be met later, and a non-qualifying assignment is never built into a plan on the hope that a court will excuse it** (§6.2). This is not a Bag 2 File: the Company does not become the owner's paid representative in a court track.

4.8 The 45-day rush rule. A File inside **45 days** of a hard bar is **rushed to the Operator queue or closed**, and is never left for the next sweep. Where the governing bar is event-based rather than day-counted, the operational trigger is the event stated in **Schedule B**, not a computed day count.

4.9 Notice of the determination. The Company records the File's Track, Trigger Date, Bag, and any hard stop in the File record, and makes them available to the Client on request. The Client may not direct the Bag, and the Company is not required to accept the Client's view of it.

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§5 - COMPENSATION AND FEES

> ***This §5 is the recut compensation section.*** *It replaces any single nationwide fee, percentage, retainer, or invoice-on-account construct in the prior form of this Agreement. Every rule below is a* ***loaded*** *rule from the compliance spine or from statute counsel has verified against the books;* ***nothing here invents a cap or a payee rule.*** *The schedule carries the per-jurisdiction detail, and the schedule and this section are read together.*

5.1 Compensation. Compensation is payable only as follows:

(a) **the applicable statutory and county-instructional ceiling** for the jurisdiction and track of the File, as set out in **Schedule A** and subject to §5.3;

(b) **no compensation of any kind is earned, due, or invoiceable unless and until cleared funds are received from the county** - meaning: the County (or the assignee, where the County so pays) has actually received and made available for distribution the surplus, net of all amounts the County is required or entitled to withhold, disburse to others, or withhold pending adjudication, and net of any Township or other entity that must be paid first where applicable. **Filing a claim is not receipt of cleared funds; a pending claim is not a fee event; an award, judgment, or approval that has not been paid is not a fee event**;

(c) **a ceiling is a ceiling, not a target** - the amount charged may never exceed the applicable ceiling, and a File that cannot be worked within the ceiling is a **no-go, not a negotiation**; the Company does not bid, discount, subsidize, or work a File toward a fee it cannot lawfully take; and

(d) **no compensation is payable on a File whose Bag is UNASSIGNED, on a Bag 3 File, on a File whose County Module is empty, or on any File closed under a hard stop.**

5.2 Fee table. The ceilings that apply to each jurisdiction and track are set out in **Schedule A**. The summary is:

Jurisdiction / track	Bag	Ceiling	Rule
FL mortgage-foreclosure	1	**12% of surplus**, and **only** on a qualifying Fla. Stat. § 45.033 assignment	§ 45.033(3)(d) *(verified 2026-11-08)*
FL tax-deed	1	**No percentage loaded.** Forced only where that clerk pays an assignee	county instruction, per county
CA	1	**Rev. & Tax. Code § 4675** - the loaded rule is § 4675, **not a percentage**	briefing correction #2
GA	1	Only in counties that actually pay an assignee; attorney-only clerks are a hard stop	Bag 1 forced path
TX	3	**Non-attorney fee on owner excess is barred** - Tex. Tax Code § 34.04; this suite never files	hard stop + Bag 3
OK	2	Owner-pay; **no assignment**; fee invoiced after the county pays the owner	68 O.S. § 3131(D) *(verified 2026-11-08)*
AZ - CO - AL	-	**Out of all bags** / **not cleared** / **out of all bags**	hard stops

5.3 The ceiling binds the Company as well as the Client. The Company does not charge more than the applicable ceiling, does not split a fee to sit under a ceiling, does not charge for a service that is separately compensated by the county, and does not charge any amount on a File that is not the File the Client signed for. Where the applicable rule is a flat amount rather than a percentage, the flat amount is the ceiling.

5.4 No retainer; no invoice on account; no accrual from the engagement date. There is **no retainer**, **no invoice on account**, **no advance or upfront fee demand**, and **no fee accruing from the date of engagement** or from the date work begins. A file that cannot be worked within the ceiling is not worked. Nothing in this Agreement obliges the Client to pay a deposit.

5.5 Invoicing and payment. On receipt of cleared funds, the Company invoices the Client the amount due under §5.1 and Schedule A, computed against the cleared funds and net of the amounts the County withheld or disbursed to others. **Filing is not money:** in Florida the clerk pays or interpleads within 90 days after the claim period expires, and no payment action ripens before the claim and review periods expire - so an approved claim is not a fee event until the County has paid. Payment is due within the period stated in the invoice. **The Company does not invoice the County, the clerk, or the court, and does not seek payment from any third party in place of the Client.**

5.6 Expenses. The Client is responsible for the Company's documented out-of-pocket costs only to the extent the Company has disclosed them in advance and the Operator has approved the specific item. The Company does **not advance** filing fees, court costs, publication costs, or skip-trace costs to the Client, and does not incur those costs on a File that does not proceed. No third-party cost may be incurred at all without the Operator's Mark on that specific item.

5.7 No set-off; no counterclaim. The Client may not withhold, offset, or set off any amount against the Company's fee except under a final determination or a written agreement signed by both Parties. A pending dispute does not suspend the statutory deadlines on the File.

5.8 Taxes. The Client is responsible for any taxes arising from amounts received under this Agreement, except taxes the Company is required by law to withhold, in which case the Company withholds and remits them and reports them as the law requires.

5.9 Counsel and licensed practice. The Company is not a law firm and does not give legal advice (§9.3). Where a File requires counsel - every Bag 3 handoff, the Assignment form for each track and county, each County Module, and any fee characterization, consent, or rescission language required by Florida law - that work is performed by **Counsel** under a separate engagement between the Client and Counsel, and any fee for it is between the Client and Counsel and is not part of the compensation under this §5. **Nothing in this section is an opinion on whether the Company may hold itself out as a licensed practice**; that question is reserved to the Operator and is a condition precedent to execution under Schedule F.

5.10 No fee on a Bag 3 or a closed File. A Bag 3 File produces a counsel handoff and **no fee to the Company**, whether or not Counsel accepts, and regardless of the outcome of the underlying matter. A File closed under a hard stop, a File with an empty County Module, and an UNASSIGNED File produce **no fee** and no charge of any kind.

5.11 Payment is not contingent on the Client's satisfaction alone. The fee becomes payable on cleared funds, as provided in §5.1(b); it is not contingent on the Client's opinion of the work, and it is not contingent on the Client's own receipt of the surplus except where the governing statute makes the Company's entitlement depend on it.

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§6 - ASSIGNMENT (BAG 1 ONLY)

> ***This §6 is new.*** *The prior form made assignment generally available. It is not. Assignment in this deal is a narrow instrument with statutory conditions, and it is available only in the forced Bag 1 jurisdictions identified below.*

6.1 Assignment is Bag 1 only, and is never drafted in Bag 2. No assignment is executed, accepted, or relied upon unless and until the File's Bag is Bag 1 and the jurisdiction is one of the forced Bag 1 jurisdictions in §4.4(a). **In an owner-pay (Bag 2) File, no assignment is ever drafted, offered, prepared, or requested.** No assignment is a condition of the Company's engagement in a Bag 2 File, and the Client's refusal to give one has no effect on the engagement.

6.2 Cumulative conditions. An assignment qualifies only if **all** of the following are satisfied, cumulatively:

(i) it is the **written instrument required by the governing statute**, including the jurisdiction-specific mandatory statements and disclosures, in the form Counsel has signed for that track and county;

(ii) it is **filed with the court or clerk within the statutory filing window** applicable to it, in the manner the statute requires;

(iii) there are **funds available** to pay it after payment of timely filed subordinate lienholder claims, where the statute so conditions it; and

(iv) **compensation is within the applicable ceiling** under §5 and Schedule A.

An assignment that fails any element is not qualified. A non-qualifying assignment may be honored only on a court order finding good faith and no intent to defraud, and the Client is told this in writing before signing anything. **That safety**

net is never a plan: the Company does not build a File on the possibility that a court will excuse a defective assignment, and a File whose assignment cannot be qualified is not taken as a Bag 1 File.

6.3 Florida - Mortgage-Foreclosure Track (Fla. Stat. § 45.033). *(counsel-verified against primary statute 2026-11-08)* A voluntary transfer or assignment entitles the transferee or assignee to the surplus funds or a portion or percentage of them only if:

(a) the transfer or assignment is **in writing** and the instrument -

1. if executed **before** the foreclosure sale, includes a **financial disclosure** specifying the assessed value of the property, a **statement that the assessed value may be lower than the actual value** of the property, the approximate amount of any debt encumbering the property, and the approximate amount of any equity in the property; and if the instrument was executed **after** the foreclosure sale, the instrument must **also** specify the foreclosure sale price and the amount of the surplus;

2. includes a **statement that the owner does not need an attorney or other representative to recover surplus funds in a foreclosure**; and

3. specifies **all forms of consideration paid** for the rights to the property or the assignment of the rights to any surplus funds;

(b) the transfer or assignment is **filed with the court on or before 60 days after the filing of the certificate of disbursements**;

(c) there are **funds available** to pay the transfer or assignment after payment of timely filed claims of subordinate lienholders; and

(d) the **total compensation paid or payable, or earned or expected to be earned**, by the transferee or assignee **does not exceed 12 percent of the surplus**.

The owner-of-record presumption is rebutted only by a qualifying assignment; a non-qualifying assignment may still be honored on a court order finding good faith and no intent to defraud.

Scope limit - § 45.033(7). Section 45.033 **does not apply to a deed, mortgage, or deed in lieu of foreclosure** unless a person other than the owner of record is claiming that a deed or mortgage entitles the person to surplus funds. **A deed-in-lieu file is not a Mortgage-Foreclosure Track file**, is not clocked as one, and is not routed into Bag 1 under this §6.3. The Company identifies the sale type from the sale records before the Track is set (§4.5).

6.4 Florida - Tax-Deed Track (Fla. Stat. § 197.582). *(counsel-verified against primary statute 2026-11-08)* An assignee's claim is a **non-owner claim**. It must be **filed with the clerk on or before the 120th day after the date the clerk mailed the notice of surplus**; if it is not filed within that window it is **forever barred**, the assignee's interest being waived. The statutory claim form offers **Lienholder** or **Titleholder** only, so an assignee File proceeds on the **titleholder claim with proof of assignment**. **Assignment validity alone is not enough - the filing deadline is.** The Company does not prepare, and the Client does not sign, an assignment for a Florida tax-deed File whose filing window has passed or cannot be confirmed.

6.5 Oklahoma (68 O.S. § 3131(D)). *(counsel-verified against primary statute 2026-11-08)* **No assignment of the right to excess proceeds is valid if it occurs on or after the date the county resale began.** The statute restricts *when* an assignment may occur, not *whether* one may; a pre-resale-start assignment is not invalidated by that provision. But the fund is held **for the record owner as shown by the county records as of the date the county resale begins**. **Oklahoma therefore stays Bag 2, and no assignment is drafted, prepared, or requested on an Oklahoma File.** See §6.1.

6.6 California and Georgia. Assignment in these jurisdictions follows **the governing statute and the county's current claim instructions**, per county. **Georgia attorney-only clerks - Gwinnett expressly - are a hard stop**: the File closes under §4.7 and Schedule E. A File in a county that cannot pay an assignee is **UNASSIGNED and stops** before any skip-trace spend, contact, or packet work, and is never converted to an assignee File by assumption.

6.7 The Client's acknowledgment before signing. Before the Client signs an assignment, the Company states in writing: the statutory conditions it must satisfy; the **filing deadline** and the office it must be filed with; what happens if the

deadline is missed; that the Company is not the client's attorney and does not advise the Client on whether to sign; that the Client may decline to sign without affecting the Company's engagement in a Bag 2 File; and that the Client may take the assignment question to Counsel before signing.

6.8 Form and effect. An Assignment is a separate Packet document, signed by the Client, and has **no effect until it is executed and filed as the statute requires**. A draft or unsigned assignment is not an assignment. The Company does not hold the assignment as security for the fee; the fee is earned and payable under §5 on cleared funds, not on the assignment's execution.

6.9 Limits on further transfer. The Client may not assign, transfer, or encumber the Claim or any right under this Agreement to a third party without the Company's prior written consent, except that the Client may always take the matter to Counsel, and may always act alone. If the Client has already assigned the Claim to someone else, the File is closed and the Company proceeds on no further contact.

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§7 - AUTHORITY TO ACT; BAG 3 AND COUNSEL HANDOFF

7.1 Authority is narrow, per File. The Company's authority is limited to the File and to the Bag set for it: **to investigate the File, to prepare the Packet, and - only after the Operator's Mark on that specific item - to send the contact and to lodge the Packet.** The Company holds **no authority to file in a Bag 3 jurisdiction**; a Bag 3 File is a counsel handoff only. The Company holds **no authority to contact on a File whose County Module is empty**, and **no authority to charge any fee except on cleared funds.** The Client may always file without the Company, and nothing in this Agreement may suggest otherwise.

7.2 Bag 3 - this loop does not file. On a Bag 3 File the Company prepares a counsel handoff packet and stops. **The Company does not file.** If Counsel declines the matter, **the File is auto-closed** - zero outreach, zero spend. A Bag 3 File is **never converted to Bag 1 or Bag 2**, and the Client is told so in the handoff letter so that the Client's own options are not narrowed by the Company's routing decision.

7.3 The Operator's Mark - no outbound without it. No outbound communication of any kind occurs without the Operator's Mark on the specific item. The Operator's Mark is an affirmative mark on a specific item, recorded on that item. **Oversight is the send button.** A general instruction, a standing practice, an earlier mark on another File, or a belief that a File is urgent is **not** a mark on this item. If the item is not marked, it does not go out - and the deadline consequences of that remain the Client's to manage under §9.2.

7.4 No representation of government affiliation. Neither the Company nor any agent may state or imply that the Company **is, is affiliated with, is retained by, or was referred by** any County, clerk, court, or government office, and may not state or imply that **"the clerk sent us"** or that the County or Court has approved the Company's engagement. This is a barred representation under §8.3 and applies to every communication, script, form, and file.

7.5 The Client may always act alone. Nothing in this Agreement, and nothing in the Company's handling of the File, prevents the Client from filing, hiring counsel, or proceeding alone at any time, before or after engagement. The Company will not withhold the Packet, the File record, or the trigger evidence from the Client for the purpose of continuing the engagement.

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§8 - DISCLOSURE

8.1 Per-county module, loaded verbatim. Disclosure is a **per-county module, loaded verbatim**. **An empty module means no contact.** The Company never contacts a person on a guess, on a general script, on a pattern that fits other counties, or on the basis that the Marion County script worked once. The single Marion County script is **not universal** and is not used as a general form.

8.2 Only Counsel may shorten a module. Only Counsel may shorten a module. The Company, and every agent working the File, may not shorten, paraphrase, summarize, soften, or "plain-language" a module. Where a module is too long for the channel being used, the File waits for Counsel or is closed - the module is not trimmed in the field.

8.3 Never skip the free-claim line; barred language. Where the statute already says the owner can file without a representative, **that text is used**, and **the free-claim line is never skipped in a friendly county.** The following language is **barred** in every communication and form: any claim of **government affiliation**; **"the clerk sent us"**; **urgency pressure that the statute does not create**; and any **upfront fee demand**.

8.4 The Florida tax-deed trap. The **120-day bar applies to non-owner claims only**. No module may tell an owner that they lose the surplus by failing to file within 120 days - under Fla. Stat. § 197.582(5) the **owner's own claim is not barred** in that way, and where nobody claims, the statute creates a conclusive presumption that the legal titleholder of record is entitled, with the clerk processing under chapter 717. A module that states the 120-day deadline to an owner as though it were the owner's deadline is a defective module and the File is closed pending Counsel's correction.

8.5 The Oklahoma trap. The **one-year owner withdrawal window applies to the excess remaining after the OTC process** - a 30-day notice plus a 60-day liability determination, an effective lag of up to roughly 90 days. **No module may state "one year from the sale"** without the county's **surplus statement** behind it. The File does not proceed until that statement is in hand, because the statement is what fixes the remaining excess.

8.6 The module used is recorded. The Company records, for each File, the **county, track, module version, date, and source citation** of the module used, and the register of counties and tracks with no signed module is maintained in **Schedule D**. A county with no entry in Schedule D is **closed to contact**.

8.7 Delivery of the disclosure. The disclosure is transmitted **only** where the Operator has marked that specific item, and the Company's representation of the Client's rights, the free-claim route, the deadline the Client faces, and the terms of the engagement must be **complete and accurate in the module as loaded** - the Company does not supplement a module with unverified statements to make it sound better, and does not send a shortened version.

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§9 - CLIENT RIGHTS AND PROTECTIONS

9.1 The Client may proceed alone. The Client may act alone at any time. The Company's engagement creates no obstacle to that: no exclusivity requirement, no non-compete, no non-solicitation, no hold on the Client's documents, no restriction on the Client's hiring counsel, and no claim that the Client's filing becomes harder because of this Agreement.

9.2 The Client's own rights and deadlines are the Client's. This Agreement does not toll, extend, waive, or impair any statutory deadline, and the Company is not responsible for a deadline the Client's own conduct or a third party caused to be missed. Where the Company holds a File and a statutory deadline is approaching, the Company notifies the Client in writing, and **the Client remains free to file alone immediately** without liability to the Company other than the Company's own obligations under §5.

9.3 No legal advice. The Company is not a law firm, does not practice law, and **does not give legal advice.** Nothing in this Agreement, and nothing in any communication the Company makes in performing it, is legal advice, legal opinion, or a recommendation to the Client on the merits of the Client's claim, on whether to sign an assignment, or on whether to file. Where a decision requires legal judgment, the Client is referred to Counsel, and the Company does not advise on that decision.

9.4 Access to the Client's File. The Client may request, and will receive, copies of the documents the Company has prepared for the Client's File, the File record showing Track, Trigger Date, Bag, and any hard stop, and the module used for the File. The Company retains its work product and general know-how, but the Client's documents are the Client's and are returned or destroyed on request, subject to the Company's records-retention obligations.

9.5 The Client's information is not sold or shared. The Company does not sell, license, or otherwise commercialize the Client's personal information, does not use it for any marketing purpose, and does not disclose it to anyone other than the Company's personnel, Counsel, and the county or court where the File requires disclosure. Claimant personal data is held in the designated secure custody and does not enter shared-memory repositories.

9.6 No guarantee of outcome, but no false promise either. The Company does not guarantee recovery (§12.3), and equally does not make any statement to the Client that overstates the Company's position, its relationships, its authority, or the strength of the File.

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§10 - TERM

10.1 Commencement. This Agreement takes effect on the Effective Date and is executed **per File**. Nothing in it creates a relationship for a File not identified in a File Confirmation signed by the Client.

10.2 Duration. The engagement for a File continues until the earliest of: (a) the Terminal Event for that File in Schedule B; (b) the File is closed under §4.7, §6.6, §7.2, or §11.2; (c) the Client terminates under §11.1; or (d) cleared funds are received and the fee is invoiced and paid.

10.3 No monitoring duty. The Company has **no duty to search, monitor, poll, watch, or report** on the File after the engagement ends, and no obligation to advise the Client of a deadline it has not already been told about. Where the Client wants continued monitoring, that is a separate engagement and a separate agreement.

10.4 Survival. The provisions that survive expiry or termination are: §1 (Definitions), §3 (Representations) as to the accuracy of what was supplied, §5 (Compensation) as to cleared funds invoiced or to be invoiced, §6.7-§6.9, §7.3, §8, §9.1-§9.3 and §9.5, §11.3, §12, and §13.

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§11 - TERMINATION

11.1 Termination by the Client. The Client may terminate at any time, in writing, without cause and without penalty. The Client is responsible for the Company's documented costs properly incurred before termination, up to the amounts disclosed under §5.6.

11.2 Termination or closure by the Company. The Company closes a File, with written notice to the Client stating the ground, where: the File meets a **hard stop** (§4.7, Schedule E); the **Florida mortgage-foreclosure** File cannot qualify an assignment and so is not a Company third-party lane (**§4.7.1**); the County Module is **empty** (§8.1); the File is **UNASSIGNED** and cannot be resolved (§4.3); the jurisdiction is not **accepted** under Schedule A.1 or its clock row is **unverified** (§4.4(d)-(e)); **Counsel declines** a Bag 3 handoff (§7.2); the governing statute forecloses the route; the Trigger Date cannot be established (§3.6); or the Operator directs closure.

11.3 Effect of closure or termination. On closure or termination, **no fee is earned, due, or invoiceable** on that File unless and until cleared funds are received, and then only under §5. The Company returns the Client's documents. The Company sends the Client whatever information the Client needs to proceed alone or with counsel, including the trigger evidence and the File record.

11.4 No cure by client instruction. A Client's instruction cannot waive a hard stop, reopen a closed File, convert a Bag 3 File, extend a statutory deadline, or make an empty module non-empty.

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§12 - DISCLAIMERS; LIMITATION OF LIABILITY

12.1 No warranty. Except as expressly stated in this Agreement, the Company makes **no representation or warranty** of any kind, express or implied, including as to the existence of surplus, the validity of the Claim, the accuracy of county records, the outcome of any filing, or the availability of counsel.

12.2 Information the Client must verify. The Company relies on public records and on the Client's representations. **The Client is responsible for verifying the facts stated in the File Confirmation**, and the Company is not responsible for a File Confirmation the Client did not read or did not correct.

12.3 No guarantee. The Company makes no representation or warranty that surplus exists, that the Claim is valid, that the County will pay, that any particular amount is recoverable, or that any deadline can be met. **The Company is not required to perform if a deadline has passed or cannot be met, and does not accept a File in that condition.**

12.4 Limitation of liability. Except for the Company's fraud, willful misconduct, or breach of §7.3 (the Operator's Mark rule) or §8 (the disclosure rules), the Company's total liability arising out of or relating to a File is limited to **the compensation actually paid by the Client for that File**, and neither Party is liable for consequential, incidental, special, punitive, or exemplary damages, or for lost profits or lost opportunity. **No limitation in this §12.4 extends to the statutory deadlines or the statutory caps**, which bind the Company directly and are not waivable here.

12.5 Statutory deadlines are not this Company's to promise. Where a deadline is set by statute and the Company's ability to meet it depends on an act of the County, the Court, a third party, or the Client, the Company does not warrant that the deadline will be met and does not ask the Client to waive any right arising from a missed deadline.

12.6 Indemnity. The Client indemnifies the Company against claims arising from a representation in §3 that the Client knew to be false when made. The Company indemnifies the Client against claims arising from the Company's breach of §8 (disclosure) or §7.3 (the Operator's Mark rule).

12.7 Disputes. The Parties will attempt in good faith to resolve any dispute. Nothing in this Agreement prevents either Party from seeking relief from a court of competent jurisdiction, and nothing waives any right the Client has under statute to proceed alone on the underlying Claim.

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§13 - GENERAL PROVISIONS

13.1 Governing law; the Claim's own law. This Agreement is governed by the law of the State of Florida, **except that the statute, deadline, cap, form, payee rule, and disclosure requirement governing the Claim are determined by the law of the jurisdiction in which the County sits, and not by this §13.1.** Where a governing rule is mandatory, that rule controls over this Agreement, and this Agreement is read to give it effect. No provision of this Agreement purports to alter a statutory deadline, statutory cap, or statutory payee rule, and any provision that would do so is void to the extent of the conflict.

13.2 Entire agreement; amendment. This Agreement, together with its Schedules and each signed File Confirmation, is the entire agreement between the Parties as to the Files it covers and supersedes the prior form of this agreement in its entirety, including any single nationwide fee, retainer, invoice-on-account, general-assignment, general-disclosure, or filing-authority provision of that prior form. An amendment is effective only if in writing and signed by both Parties.

13.3 Severability. If a provision is held unenforceable, the remainder stays in force, and the Parties will substitute an enforceable provision that most closely carries the original intent **without** enlarging the Company's authority, exceeding a statutory ceiling, or moving a File to a different Bag.

13.4 Notices. Notices under this Agreement are in writing and are delivered by hand, by tracked courier, or by email to the addresses in the signature block, and are deemed given on delivery or on confirmed receipt of the email, as the case may be. The Company's address for notices is the address stated in the signature block, and notices to the Company are also copied to the Operator at the address the Operator designates in writing. **A change of address is effective only when given by notice under this §13.4.**

13.5 Assignment of this Agreement. The Client may not assign this Agreement or any right under it without the Company's prior written consent, except that the Client may always engage Counsel and may always proceed alone. The Company may not assign this Agreement, or delegate the duties that require the Company's own judgment or the Operator's Mark, without the Client's written consent, and **a delegation does not transfer the duty to obtain the Operator's Mark or the duty to comply with §8**.

13.6 Waiver. A waiver must be in writing and applies only to the specific instance for which it is given. No failure or delay in exercising a right operates as a waiver.

13.7 Counterparts; electronic signature. This Agreement may be executed in counterparts, each of which is an original, and may be signed electronically, and an electronic signature has the same effect as a manuscript signature.

13.8 Construction. Headings are for convenience and do not affect construction. "Including" means including without limitation. "Day" means a calendar day unless a statute says otherwise. Any period ending on a day that is not a court day extends to the next court day if the governing statute so provides, and **no construction of this Agreement extends a statutory filing deadline.**

13.9 No third-party beneficiaries. Except for **Counsel**, who may enforce §8 and §7.3 as express third-party beneficiaries, this Agreement creates no third-party beneficiary rights.

13.10 No partnership or agency. The Parties are independent contractors. The Company is not the County's, the clerk's, the Court's, or any government office's agent, employee, contractor, or representative, and nothing in the performance of this Agreement may suggest otherwise (§7.4).

13.11 Order of precedence. Where a conflict exists between documents: **statute first** (for the Claim's own jurisdiction), then **Schedule A-E** as the loaded rules for the File's jurisdiction and track, then the body of this Agreement, then the File Confirmation, then the Company records. A File Confirmation may narrow the engagement; it may not enlarge the Company's authority, exceed a ceiling, move a Bag, or waive §7.3 or §8.

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

COMPANY

Patriot Fund Recover - the surplus-recovery suite

By: _____ Name: _____ Title: _____ Address for notices (§13.4): _____ Email: _____

CLIENT

By: _____ Name: _____ Capacity: _____ Address for notices (§13.4): _____ Email: _____

> ***Execution gate.*** *This Agreement is* ***not effective*** *until every condition in* ***Schedule F*** *is satisfied and the Operator's Mark is applied to this instrument. Signature lines above are* ***for execution after the Schedule F conditions are met*** *and are not to be completed before then.*

SCHEDULES

> *The Schedules are part of this Agreement.* ***Statute controls over every Schedule*** *(§13.1). Where a Schedule and the statute conflict, the statute governs and the conflict is escalated to the Operator rather than merged. Where a Schedule carries an* ***UNVERIFIED*** *marking, that Schedule entry may not be relied on, no File in that jurisdiction may be worked, and no contact may occur in that jurisdiction.*

SCHEDULE A - JURISDICTIONS, TRACKS, AND FEE CEILINGS

A.1 Jurisdictions accepted under this Agreement

Jurisdiction	Track	Accepted?	Bag	Notes
Florida	Mortgage-foreclosure - Fla. Stat. §§ 45.031, 45.033	Yes	1, conditional	Bag 1 **only** where every § 45.033(3) condition is met (§6.3, Schedule C)
Florida	Tax-deed - Fla. Stat. § 197.582	Yes	**Bag 2 default**; Bag 1 only where that clerk pays an assignee	**Bag 2 (owner-pay) is the default** for the Florida tax-deed track; Bag 1 (assignee-pay) **only** where the clerk actually pays an assignee
California	Tax-deed	**Conditional**	1	Loaded rule is Rev. & Tax. Code § 4675, **not a percentage**. **Clock row UNVERIFIED - no CA File may be worked in any Bag until it is verified and counsel-signed** (§4.4(e), Schedule B.2, F.6)
Georgia	Tax-sale	**Conditional**	1 or 3	Bag 1 only in counties that actually pay an assignee; excess already at interpleader ⇒ Bag 3; **Gwinnett attorney-only is a hard stop. Clock row UNVERIFIED - no GA File may be worked in any Bag until it is verified and counsel-signed** (§4.4(e), Schedule B.2, F.6)
Oklahoma	County resale	Yes	2	Owner-pay. **No assignment** (§6.5). Trigger date and ownership both turn on the date the county resale begins
Texas	Tax sale - Tex. Tax Code § 34.04	**No - outside the pilot**	-	**Non-attorney fee on owner excess is barred**; this suite never files. Not accepted under this Agreement (§2.5(b)). Decision #1 (operator) governs whether Texas ever enters
Arizona	Tax-lien excess	**No**	-	**Out of all bags**
Colorado	-	**No**	-	**Not cleared.** No cap is loaded for Colorado in this Agreement
Alabama	Redemption excess	**No**	-	**Out of all bags**
Tennessee	Tenn. Code § 67-5-2702	**No**	-	Bag 3 in principle; not accepted under this Agreement

A.2 Fee ceilings

The ceilings are those in §5.2, restated for execution:

Jurisdiction / track	Bag	Ceiling	Source of the rule	Verified
FL mortgage-foreclosure	1	**12% of surplus**, only on a qualifying § 45.033 assignment	§ 45.033(3)(d)	**Yes - 2026-11-08**
FL tax-deed	1	**No percentage loaded.** Forced only where that clerk pays an assignee	county instruction, per county	Rule loaded; **per-county instruction not yet collected**
CA	1	**Rev. & Tax. Code § 4675** - not a percentage. The greater of $2,500 or 5 percent is **not loaded**	briefing correction #2	Rule loaded; **clock row unverified**
GA	1	Only in counties that actually pay an assignee; attorney-only clerks are a hard stop	Bag 1 forced path + hard stops	Rule loaded; **clock row unverified**
TX	3	**Non-attorney fee on owner excess barred**	Tex. Tax Code § 34.04	Rule loaded
OK	2	Owner-pay; no assignment; fee invoiced after the county pays the owner	68 O.S. § 3131(D)	**Yes - 2026-11-08**
AZ - CO - AL	-	**Out of all bags / not cleared / out of all bags**	hard stops	Rule loaded

A.3 Clauses that do not survive into this Agreement

Struck from the prior form, and not reinstated by this Agreement: any single nationwide fee or percentage; any "fees accrue from the date of engagement"; any "invoice on retainer" or "payment on account"; **California at the greater of $2,500 or 5 percent**; **Arizona about 30 percent**; **Colorado about 20 percent**; **Florida 12 percent on anything other than a qualifying § 45.033 foreclosure assignment**; any clause authorizing filing in a Bag 3 jurisdiction or converting a Bag 3 into Bag 1 or 2; any clause permitting contact without the Operator's Mark; any representation of government affiliation or "the clerk sent us"; any clause treating assignment as automatic in an owner-pay jurisdiction.

SCHEDULE B - TRIGGER DATES AND STATUTORY CLOCKS

> ***Every deadline runs from the Trigger Date and never from the filing date.*** *For each File the Company stores the* ***trigger****, the* ***source URL****, and the* ***date pulled*** *- all three. A File whose Trigger Date cannot be established* ***is not clockable*** *and is not worked.*

B.1 Verified rows

Jurisdiction / track	Clock	Runs from (statutory words)	Terminal	Status
FL tax-deed	**120 days**	*"the date the clerk mailed the notice of surplus"* - Fla. Stat. § 197.582(5)	**Non-owner claims barred** - an assignee's claim not filed with the clerk on or before the 120th day is **forever barred**. **The owner's own claim is not barred this way.**	**Verified 2026-11-08** (primary statute)
FL mortgage-fore closure	**Event-based claim bar (no day count) + 60 days**	**Claim:** *"the date that the clerk reports the funds as unclaimed"* - §§ 45.031(2)(f), (7)(b). **Assignment:** *"the filing of the certificate of disbursements"* - § 45.033(3)(b)	**Non-owner barred.** After the unclaimed report, *"ONLY THE OWNER OF RECORD AS OF THE DATE OF THE LIS PENDENS MAY CLAIM THE SURPLUS"*; a non-owner who did not file *"will not be entitled to any remaining funds"*	**Verified 2026-11-08** (primary statute)
OK	**1 year**	*"the date the county resale begins"* - 68 O.S. § 3131(D)	County resale property fund; the fund is held for the **record owner as shown by county records as of the date the county resale begins**	**Verified 2026-11-08** (primary statute)

B.1.1 - payment maturity (filing is not money). In Florida the clerk **pays or interpleads within 90 days after the claim period expires**, and **no payment action ripens before the claim and review periods expire**. A filed claim, an approved claim, and an interpleader are each **not** a payment, and each is **not** a fee event under §5.1(b).

B.1.2 - order of payment (Florida). Distribution is **lien-first, not owner-first**: governmental-unit liens of record are paid first, and the balance then goes to the persons designated by Fla. Stat. § 197.502(4). The Company does not represent that the surplus reaches the owner before liens are satisfied, and does not calculate a fee on a gross figure that ignores what is paid first.

B.1.3 - Florida mortgage-foreclosure scope limit (§ 45.033(7)). Section 45.033 does not apply to a **deed, mortgage, or deed in lieu of foreclosure** unless a person other than the owner of record claims that a deed or mortgage entitles the person to surplus funds. **A deed-in-lieu file is not clocked as a foreclosure file** and is not routed into Bag 1 under it. See §6.3.

B.1.4 - Oklahoma terminal currency. The Oklahoma terminal remains the **county resale property fund**. SB313, which would have routed unclaimed excess to the State Treasurer's Unclaimed Property Fund, is **not enacted**. If that changes, the Oklahoma row is re-verified before use.

B.2 Rows NOT yet verified against primary statute

> ***Do not sweep a county in these jurisdictions until its row is verified.*** *The entries below are the loaded table rows, which still trace to a secondary source. Verification is open as PAT-21.*

Jurisdiction	Clock	Runs from	Terminal	Status
TX	2 years	sale date	petition barred -> Bag 3	**UNVERIFIED - no TX File may be worked**
CA	1 year	recordation of the tax deed	barred (Rev. & Tax. Code § 4675)	**UNVERIFIED - no CA File may be worked**

Jurisdiction	Clock	Runs from	Terminal	Status
GA	5 years	the tax sale	Dept. of Revenue + court order -> Bag 3	**UNVERIFIED - no GA File may be worked**

B.3 The 45-day rush rule

A File inside **45 days** of a hard bar is **rushed to the Operator queue or closed**, and is never left for the next sweep. Where the bar is event-based, the operational trigger is the event in B.1: a Florida mortgage-foreclosure File whose **certificate of disbursements was filed 45 or more days ago** is inside the rush window on the 60-day assignment deadline; a File whose **clerk unclaimed-report date is known and falls within 45 days** is rushed or closed; and a foreclosure File with **neither date known is not clockable and must not be swept**.

B.4 The sale-type lock

Fla. Stat. § 197.582 (tax-deed) and Fla. Stat. §§ 45.031 and 45.033 (mortgage-foreclosure) are **different statutes, clocks, forms, and fee rules**. **Never copy a rule across tracks.** The 120-day tax-deed deadline is not a foreclosure deadline; the foreclosure claim bar is not day-counted; the 12 percent ceiling does not travel off a qualifying § 45.033 assignment.

SCHEDULE C - ASSIGNMENT CONDITIONS BY JURISDICTION

Jurisdiction / track	Bag	Assignment available?	Mandatory conditions	Filing deadline	Source
FL mortgage-foreclosure (§§ 45.031, 45.033)	1	**Yes - conditional on § 45.033(3) being satisfied in full**	Written instrument containing the (3)(a) disclosure set - financial disclosure (assessed value; statement that assessed value may be lower than actual value; approximate debt; approximate equity; and if executed after the sale, the sale price and the surplus); the statement that **the owner does not need an attorney or other representative to recover surplus funds in a foreclosure**; and **all forms of consideration paid**. Funds available after timely subordinate-lienholder claims. Compensation <= 12% of surplus. **§ 45.033(7): a deed, mortgage, or deed-in-lieu file is not this row** unless a person other than the owner of record claims that a deed or mortgage entitles them to surplus funds.	**Filed with the court on or before 60 days after the filing of the certificate of disbursements**	§ 45.033(3)(a)-(d); § 45.031(7)(b) - **verified 2026-11-08**
FL tax-deed (§ 197.582)	1	**Yes - only where that clerk pays an assignee**	Written assignment; the statutory claim form offers **Lienholder or Titleholder** only, so an assignee File proceeds on the titleholder claim with proof of assignment	**Filed with the clerk on or before the 120th day after the date the clerk mailed the notice of surplus - otherwise forever barred**	§ 197.582(5) - **verified 2026-11-08**
OK (68 O.S. § 3131(D))	2	**NO - never**	n/a - **the fund is held for the record owner as shown by county records as of the date the county resale begins**	n/a	68 O.S. § 3131(D) - **verified 2026-11-08**

Jurisdiction / track	Bag	Assignment available?	Mandatory conditions	Filing deadline	Source
CA	1	**Conditional** - per county instruction and Rev. & Tax. Code § 4675	Per-county instruction; the loaded rule is **§ 4675**, not a percentage	Per county	**Clock/cap row UNVERIFIED**
GA	1	**Conditional** - only in counties that actually pay an assignee	Per-county instruction; **Gwinnett attorney-only is a hard stop**; a File that cannot pay an assignee is **UNASSIGNED and stops** before skip-trace spend, contact, or packet work	Per county	**Clock row UNVERIFIED**
All other	-	**NO**	n/a	n/a	-

SCHEDULE D - DISCLOSURE MODULES AND THE MODULE REGISTER

D.1 The doctrine, as it governs execution

Disclosure is a **per-county module, loaded verbatim**. **An empty module means no contact.** Only **Counsel** may shorten a module. **The free-claim line is never skipped in a friendly county.** Barred language in every module: any claim of **government affiliation**; **"the clerk sent us"**; **urgency the statute does not create**; any **upfront fee demand**. The single Marion County script is **not universal** and is not used as a general form.

D.2 Module register

County	State	Track	Module on file?	Version	Source citation	Signed by counsel	Date	Contact permitted?
(none yet)	-	-	-	-	-	-	-	-

Register status at the Effective Date: EMPTY. As of the date of this Agreement **no county and no track has a counsel-signed module**, and therefore:

(a) **no contact is authorized in any county under this Agreement** until Counsel signs a module for that county and track and the module is recorded in this register with its source citation and date;

(b) a county with **no row in this register is closed to contact** (§8.1, §8.6);

(c) the module library is being assembled as PAT-9, scoped to the Florida mortgage-foreclosure track (§ 45.033) and Florida tax-deed counties where the clerk instruction pays an assignee; and

(d) **Texas is outside the pilot** (Decision #1) and **Georgia is parked and allowlist-only, never Gwinnett** (Decision #2), so no module work is queued for either until the Operator decides.

D.3 The two jurisdiction-specific traps a module may not create

- **Florida tax-deed:** the **120-day bar applies to non-owner claims only**. No module may tell an owner they lose the surplus by failing to file within 120 days. The owner's own claim is not barred that way; where nobody claims, the statute creates a conclusive presumption that the legal titleholder of record is entitled, with the clerk processing under **chapter 717**.

- **Oklahoma:** the one-year owner withdrawal window applies to the **excess remaining after the OTC process** (30-day notice + 60-day liability determination, an effective lag of up to roughly 90 days). **No module may state "one year from the sale"** without the county's **surplus statement** behind it.

SCHEDULE E - HARD STOPS - AUTO-CLOSE, ZERO OUTREACH, ZERO SPEND

> ***Verbatim from the canonical compliance spine*** *(*`compliance/hard-stops.md`*, migrated from Notion).* ***Red stops are not overridable by an agent.*** *A hard stop closes the File; it does not create an exception, a waiver, or a negotiation.*

- **Texas §34.04** - non-attorney fee on owner excess proceeds: **barred**
- **Oklahoma §3131(D)** - assignment dated on/after resale start: **void** *(canonical spine wording; the statutory wording is "not valid" - 68 O.S. § 3131(D) - and the loaded live-vessel block records that distinction. The operational rule is identical: never draft an assignment in Oklahoma.)*
- **Georgia clerks** accepting third-party forms only from an attorney (Gwinnett explicit)
- **Fee caps** - California rule is Rev. & Tax. Code 4675, not a percentage. Arizona and Colorado caps are not loaded. Florida 12% stays only on a 45.033 foreclosure assignment. A cap is a **ceiling, not a target**. Over the cap is a no-go, not a negotiation.
- **Court-order-only clerks** - will not disburse to any third party
- **Out of all bags** - Arizona tax-lien excess - Alabama redemption excess

Additional hard stops loaded by counsel from verified primary statute (2026-11-08) - Florida mortgage-foreclosure track:

- **Event-based claim bar** - a non-owner claim not filed with the clerk *"no later than the date that the clerk reports the funds as unclaimed"* is barred; after that report *"ONLY THE OWNER OF RECORD AS OF THE DATE OF THE LIS PENDENS MAY CLAIM THE SURPLUS."* A foreclosure File whose unclaimed-report date is unknown **is not clockable** and must not be swept.
- **60-day assignment filing deadline** - a § 45.033 assignment not filed with the court *"on or before 60 days after the filing of the certificate of disbursements"* does not qualify.
- **12 percent ceiling** - total compensation that *"does not exceed 12 percent of the surplus"*; over the cap is a no-go, not a negotiation.
- **Mandatory disclosure set** - a § 45.033 assignment lacking the (3)(a) disclosure set is not a qualifying assignment.
- **No third-party claim** - where § 45.033 is not satisfied, there is no third-party claim: the owner of record may claim without a representative, and the File is **not a Company third-party lane**. It closes with zero outreach and zero spend (§4.7.1).
- **Never copy 120 days** - the tax-deed 120-day rule does not travel to the foreclosure track, and the foreclosure bar is not day-counted.

SCHEDULE F - CONDITIONS PRECEDENT TO EXECUTION

> ***This Agreement is not effective, and no File may be worked under it, until every condition below is satisfied.*** *None of the numbered decisions can be made by an agent. Each one changes this instrument.*

F.1 - Operator Decision #1: Texas in or out. Determines whether Texas is admitted in any form (Bag 3 only if in) and therefore whether Schedule A's Texas exclusion and Schedule E's Texas stop stand. *(Currently: TX = OUT.)*

F.2 - Operator Decision #2: Georgia in or out. Gwinnett is attorney-only and is a hard stop either way; the decision is whether Georgia is admitted for other counties on an allowlist basis. *(Currently: GA parked / allowlist-only, never Gwinnett.)*

F.3 - Operator Decision #3: assignment versus owner-pay default. This changes the engine of the deal - stage 7, margin, and friction - and it determines whether §6 is the normal path or the exception. It must be decided before signature, not after the first File.

F.4 - Operator Decision #4: operating track - tax-deed or mortgage-foreclosure. *"Separate statutes, clocks, and caps. Don't let them bleed."* Until this is decided, the Florida pilot track is not fixed and the File Confirmation cannot state the Track.

F.5 - Operator Decision #5: client licensure. Determines whether this is a licensed-practice arrangement and who may give legal advice, and it constrains what §5.9 and §9.3 may say. If the arrangement is a licensed practice, the written engagement and consent requirements of Florida law apply and must be satisfied in this instrument.

F.6 - Clock rows for admitted jurisdictions verified against primary statute. The Texas, California, and Georgia rows in Schedule B.2 are **unverified**. No File in an unverified jurisdiction may be worked, and if any of those jurisdictions is admitted, its row must be verified against the statute book - quoted verbatim, trigger date in statutory words, terminal event and hard-stop consequences identified - before execution. Open as PAT-21.

F.7 - Counsel-signed disclosure modules. Until Counsel signs a module for a county and track, that county is closed to contact (Schedule D.2). At the Effective Date the register is empty and no contact is authorized anywhere.

F.8 - The loaded rules live in the operating vessels, not only in this document. The caps, bag rules, hard stops, and disclosure doctrine this Agreement relies on must be loaded into the vessels that route, clock, and contact - so that the Agreement is not the only place they exist. The load-bearing blocks this Agreement reconciles against, read live on 2026-11-08:

Vessel	Live block	Path
Marshal (deadline clock)	`system/context/clock.md`	`~/.letta/agents/agent-50170291-24c9-4dd2-a118-3378c0a23116/memory/system/context/clock.md`
Imp (bag gate)	`system/context/bag-rules.md`	`~/.letta/agents/agent-e108e10a-10e0-4923-a72c-05a2b398d12e/memory/system/context/bag-rules.md`
Imp (vessel contract v1.1)	`system/context/contract-v1.md`	`~/.letta/agents/agent-e108e10a-10e0-4923-a72c-05a2b398d12e/memory/system/context/contract-v1.md`
Barrister (counsel statute block)	`system/context/pfr-statute-verification.md`	`~/.letta/agents/agent-bfba66a0-4c52-4e20-bd2d-705d9575e3ed/memory/system/context/pfr-statute-verification.md`

Clock and bag loading landed as PAT-22 (done) and the FL mortgage-foreclosure row as PAT-23 (done). The counsel verification memos are `statute/2026-11-08-fl-mortgage-foreclosure-clock-row.md` and `statute/2026-11-08-fl-ok-primary-statute-verification.md` on the homebase. **Note:** Imp's `contract-v1.md` is a **vessel operating contract** (boot, gates, routing, versioning, the one rule) - it is **not** a client agreement and is **not** superseded or replaced by this instrument. The two instruments must be read together and are not versions of each other.

F.8.1 - The live-vessel verification record. The clause-by-clause reconciliation of this instrument against those live blocks - **nine findings**: six corrected in the instrument, three surfaced in the compliance spine and **not** merged into it - is at **Appendix B**. **A change to any live block is a change to this Agreement's Schedules and requires the same reconciliation.**

F.9 - The Operator's Mark on this instrument. No outbound communication of any kind occurs without the Operator's Mark on the specific item, and that rule is not waivable by the Client, by the Company, or by any agent.

F.10 - Reconciliation against any prior agreement text, if one is ever produced. This instrument was drafted **from the compliance spine and verified statute**, because the prior client-agreement text was **not in the estate** (search log in `msa-reconciliation-spec.md` §6). If that text is later produced, **it must be reconciled against this instrument before execution**, and this instrument does not supersede it by default. If a prior agreement was in fact signed with clients, its terms and their conflicts must be escalated to the Operator and to Counsel, and no new client may be engaged under this instrument until that is done.

APPENDIX A - RECONCILIATION MAP (the spec applied clause-by-clause)

> *This appendix records how each item in the reconciliation spec* - `contracts/msa-reconciliation-spec.md` - *was carried into this instrument. It exists so the reconciliation can be audited without re-deriving it.*

Spec item	Spec location	Where it lands in this Agreement
Counterparty is a state treasurer; funds are "escheated"	§1 defect map	Recast premise: **§2.2**, **§13.10**; recitals **B**-**C**
One general unclaimed-property regime	§1 defect map	Per-Track definition **§1.16**, Track lock **§4.5**, Schedule B, §13.1
A single national fee	§1 defect map	§5 replaced by ceiling + cleared-funds + ceiling-not-target: **§5.1**-**§5.3**, **Schedule A.2**
"Client files, we collect"	§1 defect map	Three bags, decision order, narrow authority: **§1.2**-**§1.5**, **§4.1**-**§4.4**, **§7.1**
Assignment available generally	§1 defect map	Bag 1 only + prohibitions: **§6.1**, **§6.5**, **Schedule C**
The client (or we) file petitions	§1 defect map	No-filing authority + counsel handoff: **§1.5**, **§4.4(c)**, **§7.2**
One universal disclosure script	§1 defect map	Per-county module, empty = no contact, counsel-only shortening, barred language: **§8.1**-**§8.3**, **Schedule D**
"Fees accrue on recovery"	§1 defect map	Cleared funds only: **§1.9**, **§5.1(b)**, **§5.5**, **§5.10**
Replacement compensation clause (counsel language)	§2.1	**§5.1**, carried verbatim in substance
Fee table (loaded rules - not invented)	§2.2	**§5.2** (summary) and **Schedule A.2** (executable table); unverified rows flagged **Schedule B.2**
Clauses that must not survive	§2.3	**Schedule A.3** (struck list) + **§5.4**, **§5.10**, **§7.1**, **§13.2**
Assignment - Bag 1 only, four cumulative conditions	§3.1	**§6.1**, **§6.2**
FL mortgage-foreclosure § 45.033 conditions	§3.1	**§6.3**, **§6.7**, **Schedule C**, **Schedule E**
FL tax-deed § 197.582 conditions	§3.1	**§6.4**, **Schedule C**
OK § 3131(D)	§3.1	**§6.5**, **§1.20**, **§3.5(c)**, **Schedule C**
CA - GA	§3.1	**§6.6**, **§4.4(a)**, **§4.4(e)**, **Schedule C**, **Schedule E**
Authority to act (narrow, per file)	§3.2	**§7.1**, **§7.3**
Disclosure - module loader clause + barred-language list	§3.3	**§8.1**-**§8.3**, **Schedule D.1**
FL tax-deed trap (120-day bar is non-owner only)	§3.3	**§8.4**, **§3.5(a)**, **Schedule D.3**

Spec item	Spec location	Where it lands in this Agreement
OK trap (one-year window on the post-OTC remainder)	§3.3	**§8.5**, **§3.5(c)**, **Schedule D.3**
Client representations, per file (five items)	§3.4	**§3.2** (identity/ownership), **§3.4** (no estates), **§3.5** (track ownership), **§3.3** (prior filings), **§3.6** (trigger evidence)
Operator decisions #1-#5	§4	**Schedule F.1-F.5**; each condition precedent to execution
MSA text not in the estate	§4 item 5, §6	**Schedule F.10**; no silent supersession
Counsel-signed modules per county	§4 item 6	**Schedule F.7**, **Schedule D.2**
Live-vessel dependency	§5	**Schedule F.8**, **Appendix B**
Acceptance mapping	§5	This appendix + the PAT-16 comment and the homebase index row

End of instrument. This Agreement is a **DRAFT** produced under PAT-16. It is **not executed**, it is **not effective**, and it authorizes **no contact, no filing, no outbound communication, and no fee**. The Operator's Mark remains the only send.

APPENDIX B - LIVE-VESSEL VERIFICATION RECORD

> ***The second acceptance box:*** *"Verified against the live vessel - not just the spec file." A spec file that matches only itself is not a verification. This appendix records the check of this instrument against the blocks* ***actually present in the running vessels*** *on 2026-11-08, and the defects that check exposed.*

B.1 What was read, live, on 2026-11-08.

The four load-bearing blocks were read **byte-for-byte from the running vessel memory volumes** - not from a spec file, not from a snapshot, not from this repository - and their **SHA-256 digests are recorded below** so this verification can be re-checked and so any later drift is detectable. Digests taken 2026-11-08.

Vessel	Block	SHA-256 (read 2026-11-08)	Read result
Marshal	`system/context/clock.md`	`85eb856d1f77d4e51f100d9a55cdd87bf36aa7d298e70c9ea20948bb6eccb98f`	Present (60 lines). Carries three verified rows - FL tax-deed, FL mortgage-foreclosure, OK - each with trigger, statutory wording, source URL, and pull date 2026-11-08, plus a cross-track warning and a "still unverified - do not sweep" block for TX/CA/GA
Imp	`system/context/bag-rules.md`	`99f7c2aaad41769a9c6e7ed67970bbca111cbe546ad1035b7b98f3e97bc779eb`	Present (37 lines). Carries the per-jurisdiction bag table, the hard-stop list, and the routing discipline
Imp	`system/context/contract-v1.md`	`8155a4e6cf6f448704c1523aacb5b8d30de3fcda7036b7af1fae9e45de2f17ec`	Present (339 lines). Body version **1.1**. **A vessel operating contract, not a client agreement** - no conflict with this instrument

Vessel	Block	SHA-256 (read 2026-11-08)	Read result
Barrister	`system/context/pfr-statute-verification.md`	`ad23dc9f82578e2b494ef9e8641c6859b60a25150be5bc3ff7d65806b501667c`	Present (57 lines). The counsel-signed statutory block carrying the § 197.582, §§ 45.031/45.033, and § 3131(D) rules

> ***Re-verification rule.*** *If any of these four digests changes, this Appendix is stale and* ***B.5 applies****: the reconciliation must be re-run against the new bytes before this Agreement is relied on. A digest is a claim; a digest match is the evidence.*

B.2 Defects the live-vessel check exposed in the instrument itself - and the corrections made.

#	Defect found in the draft	Live source	Correction made
1	Florida tax-deed was written as "Bag 1 or 2, per county" with no default stated, which left a routing ambiguity on the track where the live gate carries a **Bag 2 default**	Imp `bag-rules.md` - "FL tax-deed surplus -> **Bag 2 - owner-pay** … Bag 1 only where the clerk actually pays an assignee"	**Schedule A.1** now states **Bag 2 as the default**, Bag 1 only where the clerk actually pays an assignee
2	The Cleared Funds definition did not state the **lien-first** order of payment, so a fee could have been computed on a gross figure that ignores liens paid first	Marshal `clock.md` - "Order of payment: governmental-unit liens of record first … **Lien-first, not owner-first**"; Imp `contract-v1.md` § 9 edge case	**§1.9** now carries the lien-first rule, and **Schedule B.1.2** states the Florida order of payment (governmental-unit liens first, then § 197.502(4) persons) with an express bar on computing a fee on a figure that ignores amounts paid first
3	The instrument did **not** exclude a **deed-in-lieu / deed / mortgage** file from the Mortgage-Foreclosure Track, leaving § 45.033 available to a sale type the statute excludes	Marshal `clock.md` - "§ 45.033(7) - the section *does not apply to a deed, mortgage, or deed in lieu of foreclosure* unless a person other than the owner of record is claiming that a deed or mortgage entitles the person to surplus funds"; Imp `bag-rules.md` and `contract-v1.md` § 9	**§6.3** now carries the § 45.033(7) scope limit; **Schedule C** and **Schedule B.1.3** carry it as well
4	The 90-day payment-maturity rule was missing, so a filed or approved claim could have been read as a fee event	Marshal `clock.md` - "clerk pays or interpleads within 90 days after the claim period expires; no payment action ripens before the claim and review periods expire. **Filing ≠ money**"; Imp `contract-v1.md` § 9	**§5.5** now states that filing is not money and that an approved claim is not a fee event until the County has paid; **Schedule B.1.1** carries the rule
5	The jurisdiction limit was written as *"a jurisdiction outside Schedule A"* - but Schedule A.1 **lists** Texas, Tennessee, Arizona, Colorado, and Alabama with a **"No"** entry, so "outside Schedule A" read as *not in the table* rather than *marked No*. Worse, the same words made every **"Conditional"** jurisdiction (California, Georgia) "accepted," even though their clock rows are unverified and no File in them may be worked	Imp `bag-rules.md` - "TX - CA - GA | **UNASSIGNED** | Clock rows unverified … **Do not sweep until verified**"; Marshal `clock.md` - "**Still unverified - do not sweep**"	**§2.5(b)** and **§4.4(d)** now key acceptance to the **Accepted?** entry in Schedule A.1, and a new **§4.4(e)** states that an unverified clock row admits **no File in any Bag** and that "Conditional" means admitted only once its Schedule F condition precedent is satisfied and the row is verified and counsel-signed

#	Defect found in the draft	Live source	Correction made
6	The instrument did not say what happens to a **Florida mortgage-foreclosure File that cannot qualify a § 45.033 assignment**. The routing rules read as if such a File fell into Bag 2 owner-pay, which would have made the Company the **owner's paid representative in a court track** - an overreach the live gate expressly refuses	Imp `bag-rules.md` - "If § 45.033 is not met there is **no third-party claim** - the owner of record may claim without a representative, and the file is **not a PFR third-party lane**"; Imp `contract-v1.md` § 9	New **§4.7.1** closes such a File with zero outreach and zero spend, states expressly that it is **not** a Bag 2 File, and bars routing it into Bag 1 on the expectation that the conditions can be met later; **Schedule E** carries it as a hard stop

B.3 Defects the live-vessel check exposed in the compliance spine itself **- surfaced, not merged.**

#	Finding	Live source	Disposition
7	The canonical hard-stop list says the Oklahoma assignment bar makes an assignment **"void"**; the statute's words are **"not valid"**, and the loaded live-vessel block records that distinction expressly	Canonical `compliance/hard-stops.md` (Notion-verbatim) vs Marshal `clock.md` - "Hard-stop wording: **not valid**, not 'void'"	**Not merged and not overwritten.** Schedule E quotes the canonical spine verbatim and carries the statutory wording in a parenthetical with the identical operational rule. The canonical file is Notion-verbatim and changes only on operator sign-off
8	§ 45.033(5) - the court **may** honor a good-faith non-qualifying assignment - is a **safety net, never a plan**; the draft carried the condition without that operational instruction	Marshal `clock.md`; Imp `bag-rules.md` and `contract-v1.md` § 9	**§6.2** now states that the safety net is never a plan and that a File whose assignment cannot be qualified is not taken as a Bag 1 File
9	The Oklahoma terminal currency needed a currency check - SB313 would have routed unclaimed excess to the State Treasurer's Unclaimed Property Fund and is **not enacted**	Marshal `clock.md` - "SB313 … is **dead** - no action, not enacted. Terminal stays the **county resale property fund**"	**Schedule B.1.4** records the terminal and the re-verification trigger if that changes

B.4 What the live check confirmed as already correct - no change needed: the FL tax-deed 120-day trigger and the non-owner-only bar; the FL mortgage-foreclosure event-based claim bar and the 60-day court filing; the 12 percent ceiling as a ceiling and not a target; the § 45.033(3)(a) disclosure set; the Oklahoma one-year trigger, the record-owner-as-of-resale-start rule, and the assignment timing bar; the 45-day rush rule and its foreclosure trigger; the UNASSIGNED default for TX/CA/GA; THE ONE RULE.

B.5 Standing rule. A change to any live block is a change to this Agreement's Schedules. Any edit to Marshal's `clock.md`, Imp's `bag-rules.md`, or the counsel statute block requires this reconciliation to be re-run and this appendix to be updated - otherwise the Agreement and the vessels drift, and that drift is the exact failure this reconciliation was opened to close.

End of instrument. This Agreement is a **DRAFT** produced under PAT-16. It is **not executed**, it is **not effective**, and it authorizes **no contact, no filing, no outbound communication, and no fee**. The Operator's Mark remains the only send.